

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND THE
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
RIVERSIDE UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

LUCAS HAMPTON, Respondent

OAH No. 2024120771

DECISION

On June 25, 2025, a Commission on Professional Competence (Commission) convened to hear this matter by videoconference. The Commission consisted of the following members: Presiding Administrative Law Judge Adam L. Berg, Nalik Davis, and Sean Pendergraph.

Christopher D. Keeler and Marie Naguib, Fagen Friedman & Fulfrost, LLP, represented complainant, Michelle Cortes, Director of Certificated Personnel, Riverside Unified School District (district).

George A. Aloupas, Aloupas Law, P.C., represented respondent, Lucas Hampton, neither of whom were present at the start of the hearing.

The matter was submitted for decision on June 25, 2025.

FACTUAL FINDINGS

1. Respondent is a certificated high school social sciences teacher employed by the district.
2. On November 15, 2024, complainant signed a Notice of Intent to Dismiss and Statement of Charges seeking to dismiss respondent for persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed by the governing board of the district. (Ed. Code, § 44932, subd. (a)(8).)
3. On November 21, 2024, respondent submitted a Demand for a Hearing.
4. A hearing before the Commission was scheduled for April 2, 2025.
5. On April 1, 2025, the Office of Administrative Hearings (OAH) granted respondent's motion for a continuance. By order dated April 16, 2025, the continued hearing was scheduled to commence on June 25, 2025, at 9:30 a.m. A Notice of Hearing was served on respondent on April 23, 2025.
6. On May 28, 2025, an OAH administrative law judge granted the district's motion to amend the statement of charges.
7. On June 4, 2025, complainant signed and filed with OAH a First Amended Notice of Intent to Immediately Suspend and Dismiss; Statement of Charges (Amended Statement of Charges) adding an additional charge of immoral conduct as cause to immediately suspend and dismiss respondent from his employment with the district. (Ed. Code, §§ 44932, subd. (a)(1); 44939, subd. (b).)
8. On June 23, 2025, the district filed notice with OAH that it was dismissing the Amended Statement of Charges against respondent.

9. After waiting 15 minutes after the start of the hearing on June 25, 2025, there was no appearance on behalf of respondent.

LEGAL CONCLUSIONS

1. A permanent employee may be dismissed for cause only after a dismissal hearing. (Ed. Code, §§ 44932, 44934, & 44944.)

2. Based on the district's rescission of the First Amended Statement of Charges, cause does not exist for respondent's dismissal pursuant to Education Code Section 44932, subdivisions (a)(1) and (a)(8), or immediate suspension pursuant to Section 44939, subdivision (b).

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ORDER

The First Amended Statement of Charges is DISMISSED. The Riverside Unified School District shall not dismiss or suspend respondent. The district shall provide respondent back pay for any lost wages, benefits, and compensation from the time he was suspended without pay following the First Amended Statement of Charges.

DATE: 06/26/2025

Nalik Davis

NALIK DAVIS

Commission Member

DATE: 06/26/2025

 Sean Pendergraph (Jun 26, 2025 14:31 PDT)

SEAN PENDERGRAPH

Commission Member

DATE: 06/26/2025

 Adam Berg (Jun 26, 2025 15:12 PDT)

ADAM L. BERG

Presiding Administrative Law Judge

Office of Administrative Hearings